STATE OF NEW YORK
PUBLIC SERVICE COMMISSION

Case 25-E-0072 – Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service.

Case 25-G-0073 – Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.

STATEMENT OF NATURAL RESOURCES DEFENSE COUNCIL

The Natural Resources Defense Council (NRDC) respectfully submits this statement regarding the Joint Proposal (JP) filed with the New York Public Service Commission (Commission) on November 5, 2025, in the above-referenced proceedings. NRDC filed testimony in these proceedings and participated in the negotiations but is not a signatory to the JP.

NRDC does not support the Joint Proposal. We are particularly concerned that the gas rate plan continues to reflect a business-as-usual approach to gas infrastructure. Maintaining this trajectory risks perpetuating unnecessary capital investment, inflating customer bills, embedding long-lived costs, and slowing the transition required under New York's climate mandates.

In particular, the continued emphasis on traditional pipe replacement exposes ratepayers to immediate upward rate pressures and significant stranded asset risk at a moment when lower-cost, lower-risk alternatives are both available and increasingly necessary. The record in this proceeding makes clear that targeted non-pipeline alternatives, pipe-integrity remediation strategies such as internal lining or in-place reinforcement, network simplification, and strategic load reduction can be better utilized to address safety and reliability needs at considerably lower cost than conventional leak-prone pipe replacement. Failing to meaningfully integrate these approaches forgoes an important opportunity to strengthen affordability, improve system efficiency, and

advance a more orderly and data-driven transition aligned with the State's long-term climate and energy goals.

Despite these concerns, NRDC does not request that the Commission reject the Joint Proposal. We respectfully encourage the Commission and Department Staff to take up the shortcomings identified here—especially those related to gas affordability, the effective implementation of NPAs, and the improvement of NPA data transparency—in its proceedings, where sustained attention and corrective action can deliver meaningful and timely progress.

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